

IN THE HIGH COURT OF THE UNITED REPUBLIC OF TANZANIA

BUKOBA SUB REGISTRY

AT BUKOBA

MISC. LAND CASE APPLICATION No.11299 OF 2024

(Arising from the decision of the High Court of Tanzania in Land Appeal No.43 of 2023, original Land Application No.33 of 2021 of the District Land and Housing Tribunal for Muleba.

MAJANJA LUKAMBA..... APPLICANT

VERSUS

CHARLES ZACHARIA.....1ST RESPONDENT

NYANGILI KASINYE.....2ND RESPONDENT

AGNES NYANGAJO.....3RD RESPONDENT

RULING OF THE COURT

Date of the last order: 11.11.2024

Date of Ruling: 27.12.2024

BEFORE: G.P. MALATA, J

The applicant herein filed an application seeking extension of time within which to file notice of appeal and appeal out of time against the Judgement by this court delivered on delivered on 13/10/2023. The application made under section 11 (1) of the Appellate Jurisdiction Act, Cap.141 R.E.2019.

The applicant advanced reasons for delay to be illegality and falling sick. The applicant filed the application for extension of time was filed on 09/05/2024. Upon

the application being served to the respondents filed joint counter affidavit contesting the same by stating that, the applicant was not sick.

On 11/11/2024, the application came for hearing and the applicant appeared represented by Mr. Mathias Mashauri learned counsel whereas the 1st respondent appeared and rest of the respondents did not appear.

Arguing, the application Mr. Mathias Mashauri submitted that, the applicant is praying for extension of time to file notice of appeal and file appeal out of time. That, the application was supported by affidavit sworn by the applicant. He submitted that, the judgement was delivered on 13/10/2023 whereas the application was lodged on 09/05/2024 being six (6) months from the date of judgement. He amplified that, the reasons for failure to file notice of appeal within time are stated in paragraphs 5 and 6 of the affidavit which are illegality and sickness of the applicant. To prove the sickness, the accused tendered medical checkup sheets dated 08/10/2023, 05/11/2023, 19/12/2023, 21/03/2024, 08/03/2024 and 16/04/2024, **Annexure ML1.**

Cementing on the validity of reasons for delay, Mr. Mathias Mashauri learned counsel referred this court to the case of **Emmanuel R.Maira Vs DED Bunda** Civil application No.66 of 2010 and **Malietha Gabo Vs Adam Mtengu**, Civil appeal No.485 of 2022 where in both cases illegality and sickness were considered as good grounds for extension of time. Finally, he prayed, the application to be granted based on the stated grounds.

Submitting in opposition of the application, the 1st respondent stated that, on 13/10/2023 the applicant was not sick and he appeared in court. Further he stated that, the sick sheet bears no truth of sickness. Moreover, he submitted that, the present case was handled by Mr. Mathias Mashauri learned counsel before the DLHT and before **Hon. Mr. Justice Ngigwana**, thus the applicant's failure to file notice is with no merits as the advocate was able to file on behalf of the applicant.

Finally, he maintained that, the applicant has shown no sufficient cause for delay, he thus prayed for the application to be dismissed with costs.

By way of rejoinder Mr. Mathias Mashauri learned counsel submitted that, the medical checkup sheets are valid and not forged ones. He admitted to have been handling the case in the DLHT and High Court, before **Hon. Mr. Justice Ngigwana** who delivered the judgment sought to be appealed against. However, he argued that, he had no instructions from the applicant.

Based on the filed documents for and against the application and submissions from both parties, it has assembled that; **one**, on 13/10/2023 the judgement sought to be appealed against was delivered in the presence of both parties, **two**, the applicant was represented by Mr. Mathias Mashauri learned counsel, **three**, the applicant did not file notice of appeal and appeal against the decision, **four**, on 09/05/2024, the applicant filed the application seeking extension of time within

which to file notice of appeal out of time, **five**, the applicant filed the present application after lapse of six (6) months from the date of delivery of judgement by **Hon. Mr. Justice Ngigwana** and **six**, the applicant raised grounds for illegality and sickness as reasons for extension of time.

Before embarking to determination of the application, this court finds indebted to pinpoint some rules governing exercise of discretionary powers in granting extension. For an application of this nature to be granted, the applicant must discharge obligations stated by the Court of appeal in various decisions including; in the case of **Lyamuya Construction Co. Ltd Vs. The Registered Trustees of Young Women Christian Association of Tanzania** Civil Application no. 2 of 2010 CAT (unreported), **Addija Ramadhani (binti Pazi) vs. Sylvester W. Mkama**, Civil Application no. 13 of 2018 where the court principled that;

- (a) The applicant must account for all the period of **delay***
- (b) The **delay** should not be **inordinate***
- (c) The applicant must show **diligence**, and not **apathy, negligence** or **sloppiness** in the prosecution of the action that he intends to take.*
- (d) If the court feels that there are other **sufficient reasons**, such as the existence of a **point of law** of sufficient importance; such as the **Illegality** of the decision sought to be challenged.*

(e) the degree of prejudice the respondent stands to suffer if time is extended;

In **Principal Secretary, Ministry of Defence and National Service v. Devram Valambhia** [1992] T.L.R. 387 while the court of appeal discussing on the illegality as ground of extension of time, it stated that;

"...such point of law, must be that of sufficient importance and I would add that it must also be apparent on the face of the record, such as the question of jurisdiction; not one that would be discovered by a long-drawn argument or process".

In **Charles Richard Kombe vs. Kinondoni Municipal Council**, Civil Reference no. 13 of 2019, the court of appeal after defining the word "illegality" came to the conclusion that; I quote;

*"From the above decisions, it is our conclusion that for a decision to be attacked on ground of illegality, one has to successfully argue that the court **acted illegally for want of jurisdiction**, or for **denial of right to be heard** or that **the matter was time barred**"*

In the case of **Mtengeti Mohamed vs Blantina Macha**, Civil Application No. 344/17/2022, the court of appeal voiced that;

*It is a principle of equity that, **vigilantibus, non dormientibus, jura subvenient**, that is to say, equity aids the vigilant and not the indolent. By way of explanation, suffice it to say that, as a general rule, the law favours those who exercise vigilance in pursuing their rights and disfavours those who rest on their legal rights by failing to act to protect their rights in a reasonable period of time.*

Also, the principle in the case of **William Kasian Nchimbi and three others v. Abas Mfaume Sekapala and Two Others**, Civil Reference No. 2 of 2015 where the court of appeal held that;

*"...illegality cannot be used as a shield to hide against inaction on the part of the applicants. And if I may add, the position set by our previous decisions is that, irrespective of the nature of the grounds advanced by the applicant in support of an application for extension of time, he must as well show diligence, and not apathy, negligence or ineptness in the prosecution of the action that he intends to take. (See **Lyamuya Construction Company Ltd v. Board of Trustees of Young Women's Christian Association of Tanzania**, Civil Appeal No. 2 of 2000 (unreported))."*

In **Elius Mwakalinga vs. Domina Kagaruki and 5 others**, Civil Application no. 120/12 of 2018 (unreported), the court held that;

"A delay of even a single day has to be accounted for otherwise there should be no point of having rules prescribing period within which certain steps have been taken."

In the case of ***Hamisi Ismail @ Zulu Vs. Republic***, Criminal Appeal no. 205 of 2015 (unreported) where the court of appeal held that

"It is settled that in an application for extension of time, the applicant is duty bound to demonstrate good or sufficient cause for delay. Further, every delay, even if for one day has to be accounted for."

In the case of ***Oswald Masatu Mwizarubi vs. Tanzania Fish Processing Ltd***, Civil Application No. 13 of 2010 where the Court of Appeal stated that:

"What constitutes good cause cannot be laid down by any hard and fast rules. The term "good cause" is relative one and is dependent upon the party seeking extension of time to provide the relevant material in order to move the court to exercise its discretion."

In the case of ***Sebastian Ndaula vs. Grace Rwamafa***, Civil Application No. 4 of 2014 (unreported), the Court stated that,

"Delay of even a single day has to be accounted for, otherwise there would be no point of having rules prescribing periods within which certain steps have to be taken"

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"Delay of even a single day has to be accounted for, otherwise there would be no point of having rules prescribing periods within which certain steps have to be taken"

Moreover, as to the reasons for sickness as a ground for extension, the law is settled that, once sickness is established and proved to justify the delay, it constitutes sufficient cause for extension of time. See the case of **Tiluhuma**

Pima vs. Malogoi Muhoyi, Civil Application no. 418/ 08 of 2022, CAT at Mwanza (Unreported)

"The law is settled that once sickness is established and proved as to justify the delay."

In **Mohamed Rabii Honde** (As the Administrator of the Estate of the Late Rabii Ismail Honde (Deceased) Vs **Hamida Ismail Honde And 11 Others**, Civil Application No. 461 Of 2017 the court of appeal held that;

*"When the application was called on for hearing, the applicant appeared in person. **He informed the Court that his advocate one Edson Mbogoro could not enter appearance because he was sick. No proof of sickness was availed to the Court.** We accordingly decided to proceed with the hearing of the appeal."*

In the case of **Pastory J. Bunonga Vs. Pius Tofiri**, in Misc. Land application no. 12 of 2019 where Hon. Mr. Justice Rumanyika, J as he then was High court Judge held that;

*"Where it was on the balance of probabilities proved, sickness has been good and sufficient ground for extension of time yes. **But with all fairness the fact cannot be founded on mere allegations. There always must be proof by the applicant***

that he fell sick and for the reason of sickness he was reasonably prevented from taking the necessary step within the prescribed time.”

On the strength of referred plethora of authorities, it is clear that, for illegality to be accommodated, it must be apparent and touching; ***one***, jurisdiction, ***two***, time limit, ***three***, res judicata, ***four***, locus standi ***five***, denial of right to be heard and ***six***, other point of law with effect of making the subordinate proceedings and judgement a nullity ab initio, ***seven***, raised timely, not apathy, no negligence or ineptness in the prosecution of the action that he intends to take and ***eight***, account for delay.

Notwithstanding the above legal grounds, the applicant must timely take necessary steps and demonstrate to the satisfaction of the court that, he did not act negligently in failure to take legal action to pursue for his rights. Any kind of inactiveness cannot be accommodated on the grounds of existence of illegality or sickness.

Further, the applicant pleaded sickness and attached medical checkup documents, however, based on the said documents, the applicant has successfully managed to accounted for delay based on sickness for the dates of 08/10/2023, 05/11/2023,

19/12/2023, 21/03/2024, 08/03/2024 and 16/04/2024 out of six months. In other words, the applicant failed to account for more than **170 days** of delay.

In my view, the applicant was not vigilant in taking action to pursue for his rights. Using illegality and sickness as grounds of extension is unjustifiable as the applicant failed to discharge his legal obligations of proving that, he was really sick for the entire period of six months by accounting according to law.

It is not credible to accord opportunity to a litigant who slumbers over his rights for song long unjustifiably. Sometimes the issue at hand might even have changed its status due to lapse time. It is settled principle of law that, *Interest republicae ut sit finis litium* arises, meaning that; it is in the interest of the republic that, there should be an end of law suit. The principle presupposes that, it is advantageous to the public that, there must be an end to litigation. The court cannot have open-ended litigation to those who sleep over their rights for no apparent reasons. Allowing such kind of uncalled for behaviour will end up frustrating or embarrassing decree holders for endless litigation.

The principles was stressed by the court of appeal in the case of **William Kasian Nchimbi and three others Vs Abas Mfaume Sekapala and Two Others** and **Mtengeti Mohamed vs Blantina Macha**, supra.

Having said all what I wanted to say, this court is satisfied beyond sane of doubt that, the applicant has successfully demonstrated that, he lacked good cause in taking action timely either by himself or through his advocate Mr. Mr. Mathias Mashauri learned counsel who was in conduct of the matter at the DLHT and High court.

This court cannot accommodate the applicant in the circumstances, but kick him out with his futile application.

In the event, the applicant's application for extension of time is baseless and without good cause, thence, it is dismissed with costs.

IT IS SO ORDERED

DATED at **BUKOBA** this 27rd December, 2024.


G.P. MALATA
JUDGE
27/12/2024

RULING delivered at **BUKOBA** this 27rd December, 2024.




G.P. MALATA
JUDGE
27/12/2024